

SERVICE AGREEMENT

This Service Agreement ("**Agreement**") is dated [9th December, 2024] and entered into by and between:

- (1) **TIKTOK PTE LTD**, a company registered in Singapore with its registered address at 1 Raffles Quay, #26-10, South Tower, Singapore 048583 (the "**Client**"); and
- (2) **SASU Sarani**, registered in France under number 881687503, whose registered office is at 7 ALLEE D'ORLEANS 92200 NEUILLY-SUR-SEINE, France ("**Service Provider**").

The Client and Service Provider are severally referred to as "**Party**", and collectively as "**Parties**".

1. Definitions

The following terms shall have the meanings set forth below:

"Anti-Corruption Laws" means any laws of the countries in which we do business, including but not limited to: i) the U.S. Foreign Corrupt Practices Act of 1977; ii) the UK Bribery Act 2010; and iii) any other applicable anti-corruption laws, regulations and rules.

"Confidential Information" means any information disclosed by Client to Service Provider, other than any such information required to be disclosed by law.

"Data Protection Legislation" means all privacy laws applicable to any Personal Data processed under or in connection with this Agreement, including all national laws and regulations, all as amended, re-enacted and/or replaced and in force from time to time;

"Government Authority" means: i) a national government, political subdivision thereof, or local jurisdiction therein; ii) an instrumentality, board, commission, court, or agency, whether civilian or military, of any of the above; iii) a government-owned/government-controlled association, organization, business or enterprises, including universities, institutions, hospitals, operators of ports, airports, railways, and airlines, other transportation companies, and industrial parks, etc.; iv) a political party; or v) a public international organization (NGO).

"Government Official" means: i) an officer or employee of any Government Authority at all levels, including national, federal, provincial, state, or local levels; ii) an officer or employee of a department, agency, or instrumentality of any Government Authority; iii) an individual acting in an official capacity or exercising a public function on behalf of any Government Authority; iv) an officer or employee of an enterprise or an institution that is owned or controlled by a Government Authority; v) a party official, or candidate for political office; and vi) an employee or person acting on behalf of a public international organization (e.g. United Nations, International Monetary Fund, World Bank, etc.); and vii) a member of a royal family.

"Personal Data" shall have the meaning ascribed to it under applicable Data Protection Legislation; and

"Intellectual Property" shall mean all worldwide rights in and to intellectual property, including without limitation rights to inventions, trade secrets, know-how, technology, research tools, data, software, improvements and rights of authorship and attribution, whether or not protected by patents or copyrights, and including, without limitation, patent applications, patents, trade secret rights, copyrights, trademarks, and other exclusive or non-exclusive rights pertaining to intellectual property owned or controlled by a Party.

2. Supply of Services

2.1 Service Provider shall perform the following services (the "**Services**"), and provide the following deliverables (the "**Deliverables**"), as set out in this Agreement below and as agreed by the Parties:

The Services and Deliverables	Campaign Name, Creative Brief, and Service: Campaign Name: Multiple Creative Services listed as: - Saudi Leads Gen Creative and production - Live Fest Creative and Production - Agency showcases Creative and Production
-------------------------------	--

	Creative Brief: the Service Provider shall fulfil the creative brief communicated by the Company to the Service Provider in relation to the provision of video content and other creative assets for the TCNs Lead Generation Campaign directed at Saudi, and MENA. Services: the Service Provider shall provide the following Services: Talent Management Services only ☐ Talent Recruitment and Management Services ☒ Any additional services to be provided by Service Provider ☒, including: • managing production budgets. • scripting. • selection, appointment and casting of actors, voice artists and other Talent in consultation with the Company. • making all necessary arrangements for the filming and production of the Deliverables including selection, appointment and casting of all resources and crew (including, the following positions if required to fulfil the Creative Brief: creative director, script writer, director of photography, producer, director, wardrobe, make-up, lighting, special effects, sound and catering), studio, locations and other necessary facilities and services to fulfil the Creative Brief and/or render the Services; • securing any required permits or permissions associated with the production of all Deliverables and/or performance of the Services (including, without limitation, all location and filming permits and releases); • undertaking and overseeing all post-production titling, editing, scoring, dubbing, cutting and completion of the Deliverables; and • any other incidental or ancillary services which are reasonably required to fulfil the Creative Brief and/or perform the Services. Deliverables: Service Provider shall deliver to Company the following (collectively, “Deliverables”): • creating and developing a storyboard for the creative assets and other Deliverables in discussion with the Company and in accordance with the directions and request of the Company. • <u>Campaign 1: 2x copies Saudi Leads Campaign</u> • Hero - 30" showcases the positivity of TikTok Creators Network and how this business would help start-ups and other targets to grow their business, etc.
--	--

- Cutdown - 15" of the main video with short script.
- Full production video by Sarani including postproduction
- Sizes: 16:9 | 9:16 | 1:1
- 1x Carousel for LinkedIn and IG
- 1x Statics for LinkedIn and IG

- Campaign 2: 4x copies Live Fest Campaign

Video 1 "Explainer Video"

- 1x Hero - 30" showcases the positivity of TikTok Creators Network and how this business would help start-ups and other targets to grow their business, etc.
- 1x Cutdown - 15" of the main video with short script.
- Language: AR Saudi/Khalji + EN subtitles
- VO: AR Narrator
- Video type: Motion/Graphic
- Sizes: 16:9 | 9:16 | 1:1
- 1x Carousel for LinkedIn and IG
- 1x Statics for LinkedIn and IG

Video 2: "Agencies Showcase - Testimonial Video"

- 1x Hero - 30" showcases real-life Agency Success Stories, featuring agencies that have achieved significant business growth by partnering with TikTok LIVE and the Creator Network program.
- 1x Cutdown - 15" from the same video
- Language: AR with EN Subtitles
- Video type: Full production + postproduction
- Sizes: 16:9 | 9:16 | 1:1
- Campaign 3: 4x copies Agencies Showcase Campaign
- **2x 20" Hero DXB Agencies videos to be filmed in Dubai**
- Video type: Full production + postproduction
- Sizes: 16:9 | 9:16 | 1:1
- **2x 20" Hero EG Agencies Video**
- Scripts
- Filming direction and mood board
- Editing
- Sizes: 16:9 | 9:16 | 1:1

Deliverables shall be supplied in Arabic language (with local dialects) and such other languages agreed between the parties in writing.

Specifications

- Deliverables shall be provided in accordance with the following specifications (the "**Specifications**"):
 - all Services and Deliverables shall comply with all applicable requirements set out in this SOW, the terms of the Agreement and the Creative Brief and be provided in

	accordance with best industry standards, including - all video assets, with a duration of 15-30 seconds must be delivered to Saudi and MENA specifications (as set out in the Appendix), meet broadcast standards and must be cleared by all relevant regulatory authorities prior to delivery. - all In-App video assets need to be supplied in ratios 9:16 and meet the Company's specifications as per the Creative Brief.
Project Schedule	- Shooting of the Deliverable on the 21st of December 2024. - Delivery of the 10x copies out-app and in-app hero films, static, and 2x carousel, and 2x statics to be delivered on the 30th of December 2024 ("Hero Delivery Date"). Delivery Date The above dates of the Project Schedule may be changed upon written agreement between the parties.
Acceptance Criteria and Procedures	- The above dates of the Project Schedule may be changed upon written agreement between the parties. - Subject to paragraph 9 (Fees), Company shall pay 50% of the Fees to the Service Provider by no later than the 17^h of December 2024 ("Initial Payment"). - Service Provider shall submit to Company for prior written approval any and all Deliverables at least 7 days in advance of the respective Hero Delivery Date. - Company shall have right to unlimited rounds of amendments within total of 48 hours of sending the Deliverable.
Project Managers	a) Name: Nahla Magdi b) Email: nahla.ahmed@TikTok.com
Reporting	Service Provider shall prepare written production reports such as CPS, Schedules, PPM, budget, and etc. for Company on an as requested basis during the course of this SOW and for 1 year thereafter. Such reports shall be sent to Company Project Manager via email sent to the email address stated in this SOW.
Fees and Payments	Company shall pay to Service Provider the amount of 20,000 US Dollars inclusive of all added Taxes ("Fees"), in consideration of Services performed by Service Provider as stipulated under this service agreement. Subject to the receipt of an undisputed invoice by the company, the company shall make payment to the Service Provider of 50% of the Fees in advance, and the remaining 50% of the Fees after the Company confirms that Service Provider a) has provided the full executed copies of this service agreement; b) has provided the Services and Deliverables to the approval and satisfaction of the Company; c) has fully and completely rendered all Services and obligations under this service Agreement ; and d) has provided to the Company other documents as required under the Agreement within 30 days from the date of invoice.

Bank details	Bank Name: Qonto Branch: 16958 Account Name: SARANI Account Number: 73092065202 Account IBAN: FR76 1695 8000 0173 0920 6520 229 Swift Code: QNTOFRP1XXX Telephone No.: +33 6 64 85 06 31
Retained Rights	N/A

2.2 Service Provider undertakes that it will at all times provide a sufficient number of qualified and skilled personnel ("**Personnel**") to perform and complete the Services.

2.3 Service Provider may engage subcontractors to assist with the performance of the Services, provided that all subcontractors are skilled and fully-qualified to perform and deliver the Services. Service Provider remains solely responsible for the acts and omissions of all subcontractors engaged.

3. Compensation

3.1 Client shall pay to Service Provider the fees as set out in the table above (the "**Fees**") in consideration of the Services to be provided by Service Provider. Each invoice will fairly and accurately report the use of any funds. Service Provider must submit each invoice to the Client within 90 calendar days following the completion of the relevant Services (or part thereof), and Service Provider acknowledges and agrees that Client will have no liability whatsoever to pay any late invoices which are not submitted within such timeframe. For example, in respect of Services which are invoiced on a monthly basis under this Agreement, Service Provider must submit the invoice for Services rendered in a given month within 90 calendar days of the end of that month. The associated payment shall be made within thirty (30) days after Client's receipt of an undisputed invoice. In no event shall the amount paid to Service Provider in connection with the performance of the Services exceed the Fees.

3.2 All amounts referred to in this Agreement shall be payable in [USD] via wire transfer and are exclusive of value added tax ("**VAT**"). Any other taxes, duties, customs or similar charges shall also be the responsibility of and payable by the Service Provider.

3.3 Payment shall not be due until all Services and Deliverables have been accepted by and performed to the satisfaction of Client. The Client is entitled to provide notification of any deficiencies in the Services, after which the Service Provider must promptly correct such deficiencies and resubmit the Services or Deliverables to Client until accepted by and performed to the satisfaction of Client.

3.4 Service Provider shall keep accurate records of the time spent, work performed, and all charges and expenses associated with the Services.

4. Relationship between the Parties

4.1 Service Provider's relationship with Client shall be as a non-exclusive independent contractor and nothing in this Agreement shall be construed to create a partnership, joint venture, cooperation, or employer-employee relationship.

4.2 The Parties undertake that they will not, nor will any of their respective officers, employees, shareholders, representatives, agents or contractors ("**Associated Parties**") commit, authorise or permit any action in connection with the negotiation, conclusion or the performance of this Agreement or any related agreement which would cause the other Party and/or its Associated Parties to be in violation of any Anti-Corruption Laws.

5. Confidential Information

Service Provider agrees that it shall not disclose to any third parties or use in any way (other than in the course of performance of the Services under this Agreement) Client's Confidential Information.

6. Intellectual Property

6.1 Service Provider agrees that all work product, Intellectual Property, and the derivative product created by Service Provider, Service Provider's subcontractors or Service Provider's employees under the scope of this Agreement, including all Deliverables (collectively, the "**Work Product**"), shall be owned by and

remain the sole and exclusive property of Client. Service Provider hereby irrevocably assigns and shall procure the assignment by any relevant Personnel (by way of present and future assignment), transfers and conveys to Client all worldwide, irrevocable, exclusive, royalty-free, transferable, and perpetual right and license of title and interest in and to the Work Product and all Intellectual Property therein, including future products, services or business derived therefrom, including the right to sue for past, present and future infringement thereof. Service Provider retains no rights in the Work Product and agrees not to challenge the validity of Client's ownership in the Work Product.

- 6.2 If Service Provider has or subsequently acquires any rights to the Work Product that cannot be assigned to Client, including any moral rights, Service Provider hereby unconditionally and irrevocably waives any and all rights to assert and enforce such rights against Client and its successors and assigns, employees, agents and customers.

7. Representations, Warranties and Undertakings

- 7.1 Service Provider hereby represents, warrants and undertakes that:
- (a) Service Provider has the capacity and is authorised to execute and implement this Agreement and this Agreement will not violate any agreement with any other parties;
 - (b) the provision of the Services and the Deliverables, and all Work Product, does not and will not:
 - (i) infringe, misappropriate or otherwise violate the Intellectual Property of any third party; and
 - (ii) violate any laws, orders, considerations, any decision from any competent authority for the time being in force to, including but without limitation, Anti-Corruption Laws;
 - (c) the Deliverables are not and will not be subject to any adverse claims, including without limitation, restrictions or to any mortgages, liens, pledges, security interests, encumbrances or encroachments;
 - (d) Service Provider has the requisite rights and licenses to fully comply with Section 6 (Intellectual Property) of this Agreement;
 - (e) Service Provider shall release the Client from any:
 - (i) complaints, claims, legal claims from; and/or
 - (ii) indemnification against, any third party in connection with and to the extent of the performance of this Agreement, including but not limited to the delivery of any of the Deliverables, which is not a result of wilful default or gross negligence of the Client, so that such matters are fully under the responsibility of the Service Provider; and
 - (f) it will comply with all applicable local laws and regulations in the performance of Services and provision of the Deliverables under this Agreement.

8. Insurance

- 8.1 Service Provider shall, in addition to any insurance required by law, carry public liability insurance and professional indemnity insurance relevant to the Services contemplated under this Agreement with such level of coverage adequate to cover the risks under this Agreement pursuant to the provision of the Services.

9. Liability and indemnification

- 9.1 Service Provider shall fully indemnify, defend and hold harmless Client, and its officers, directors, employees, agents, successors and assigns ("**Client Indemnitees**") from and against any and all claims, damages, liabilities, losses, and expenses (including any and all legal fees, expenses and costs) incurred by or asserted against any Client Indemnatee of whatever kind or nature due to:
- (a) a breach or alleged breach by Service Provider of any obligation, representation or warranty in this Agreement; or
 - (b) negligent or wilful acts of Service Provider or Personnel; and
 - (c) any claim that the receipt, possession or use of any of the Deliverables and/or Services by Client Indemnities infringes the Intellectual Property rights or other proprietary rights of any third party.
- 9.2 In no event shall either party be liable for any indirect, consequential or special loss however arising and irrespective of whether such losses are foreseeable or anticipated.

10. Term and Termination

- 10.1 This Agreement shall commence on the date hereof and shall continue until the completion of the Services or one (1) year from the Effective Date ("**Term**") unless earlier terminated as provided below.
- 10.2 Client may at its sole discretion and without the need for a court order terminate this Agreement at any time on thirty (30) days written notice, or immediately on written notification if Service Provider materially breaches any provision of this Agreement.

10.3 Upon termination of this Agreement, Service Provider shall:

- (a) deliver to Client all Work Product, including work in process, developed under this Agreement up to the date of termination;
- (b) return or destroy all Client property and Confidential Information in Service Provider's possession; and
- (c) submit a final invoice to Client. Outstanding payment obligations and all terms intended to survive termination shall survive any termination of this Agreement.

11. Data Protection

Each of the Service Provider and the Client agree that they will comply with the Data Protection Legislation.

12. Compliance, Anti-Bribery and Corruption

12.1 Service Provider represents, warrants and undertakes that neither it, nor any of its officers, directors, or shareholders, nor to the knowledge of Service Provider any of its agents or employees, is or will be a person or company (as applicable) (a) whose property or interest in property is blocked by any sanctions administered or enforced by the U.S. Department of Treasury's Office of Foreign Assets Control or the U.S. Department of State ("**Sanctions**"), (b) operating, organized, or resident in a country or territory that is the target of comprehensive Sanctions (as of the date of this Agreement, Cuba, Iran, North Korea, Syria, and the Crimea region) ("**Sanctioned Countries**"), or (c) owned or controlled by any such person (collectively, "**Sanctioned Persons**").

12.2 The Service Provider, its affiliates or any of their respective officers, employees, shareholders, representatives, agents or contractors (collectively the "**Associated Parties**") shall not request, accept, offer or give any off-books commission, improper gift or other financial benefit or inducement from or to any employee of the Client or its affiliates, or any other person including Government Officials in connection with this Agreement, and shall ensure that third party agents and subcontractors acting on its behalf shall not request, accept, offer or give any such off-books commission, improper gift, benefit or inducement. Once the Service Provider becomes aware of any suspected or alleged acceptance or provision of such off-books commission, improper gift, or benefit in connection with the Agreement, it shall immediately notify Client with details of such incident.

12.3 Integrity and compliance are of utmost importance to the Client in business conduct and every other aspect. To further clarify the specific standards in terms of ethics, integrity, human rights, etc., TikTok has developed the ByteDance Partner Code of Conduct (hereinafter referred to as the "**Code**," please refer to <https://supplier.bytedance.com/code-en.pdf> for details) which the Client expects the Service Provider to adhere to.

12.4 The Service Provider and their Associated Parties shall be solely responsible for complying with the Anti-Corruption Laws and shall not to their best knowledge take or fail to take any actions, which may subject Client or its affiliates to liability under the Anti-Corruption Laws.

12.5 The Service Provider and their Associated Parties shall implement and maintain an effective and appropriate internal control system and a compliance program for the prevention of bribery and corruption, money laundering and other crimes.

12.6 The Client shall be entitled to conduct surveys and audits, when and as the Client deems appropriate, to verify the Service Provider's and its Associated Parties' compliance with applicable Anti-Corruption Laws in connection with this Agreement. The Service Provider shall cooperate fully with such due diligence surveys or audits and respond to Client's requests in a timely manner and in good faith, including making relevant documents and personnel available.

12.7 The Parties agree that any non-compliance of the Service Provider, even partial, with this Section 12 (including any change of circumstance without prior notice to Client), which Client reasonably believes may result in adverse consequences for Client shall all be considered a material breach that is incapable of remedy under this Agreement and, as a consequence, shall entitle the Client, by serving notice, to immediately terminate this Agreement and be released from all obligations to pay consideration thereunder, if any.

13. Governing Law and Arbitration

13.1 This Agreement shall be subject to, governed by and construed in accordance with the laws of the Dubai International Financial Centre ("**DIFC**").

13.2 Any dispute arising out of or in connection with the Agreement, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered

by the London Court of International Arbitration ("LCIA") in accordance with the Arbitration Rules of the LCIA ("LCIA Rules") for the time being in force, which LCIA Rules are deemed to be incorporated by reference in this Section except where such LCIA Rules conflict with the provisions of this Section, in which event the provisions of this Section shall prevail. Any arbitration commenced pursuant to this Section shall be conducted by one arbitrator. The seat of the arbitration shall be in DIFC. The language to be used in, and all written documents provided in such arbitrations, shall be English.

- 13.3 Nothing in this Agreement shall preclude either Party applying for urgent interlocutory relief from any court of competent jurisdiction and for this purpose, the Parties expressly submit to the jurisdiction of any such court.

13.4 Miscellaneous

- 13.4.1 This Agreement contains the full and complete understanding and agreement between the Parties relating to the subject matter hereof and supersedes all prior understandings and agreements, whether oral or written. Any amendment to this Agreement shall be effective only if made in writing and signed by both Parties.
- 13.4.2 Any and all notices permitted or required to be given shall be deemed duly given upon actual delivery, if delivery is by hand; or one (1) day after being sent by overnight courier, charges prepaid. Notices shall be sent to the addresses first written above. The Parties may agree to provide notice by email.
- 13.4.3 This Agreement may not be assigned, in whole or in part, by Service Provider without the prior written consent of Client.
- 13.4.4 A person who is not a party to this Agreement shall not have any rights under or in connection with it whether under the Contracts (Rights of Third Parties) Act 1999 or otherwise.
- 13.4.5 The failure of either Party to enforce, at any time or for any period of time, the provisions hereof, or the failure of either Party to exercise any option herein, shall not be construed as a waiver of such provision or option and shall in no way affect that Party's right to enforce such provisions or exercise such option.
- 13.4.6 In the event any provision of this Agreement is determined to be invalid or unenforceable by ruling of an arbitrator or court of competent jurisdiction, the remainder of this Agreement (and each of the remaining terms and conditions contained herein) shall remain in full force and effect.
- 13.4.7 This Agreement may be executed any number of counterparts, and by exchange of signed counterparts, each of which shall be deemed an original and all of which, when taken together, shall constitute one and the same original instrument.

This Agreement has been entered into as of the Effective Date.

SIGNED BY:
TIKTOK PTE LTD

)
)

SIGNED BY:
SARANI

DocuSigned by:
Emmanuel Gomez
13347DA18EC64AB...

Signature:
Name:
Date:

Signature:
Name: Emmanuel Gomez
Date: 09/12/2024